

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN LUXEMBOURG

Complete Community Opposition How-To

This guide is honest that its landmark fight is not yet won, and it is built around a distinctly modern lever — a heavy development's real vulnerabilities (its enormous thirst for water and power, its thin public benefit, its secrecy) turned against it through environmental law, transparency demands, public mobilisation, and local planning politics. It names the tools you'll meet (the EIA and consultation, the Aarhus Convention, EU environmental law, the planning process, the courts) in plain words.

INTRODUCTION & FRAMEWORK

When a global technology company set out to build a vast **data centre at Bissen** — a project critics say could consume something like a tenth or more of the whole country's water supply for cooling, and as much electricity as every household in Luxembourg combined, in exchange for very few jobs, little tax, and almost no transparency — a small commune did not simply accept it. The opponents seized on the project's real weaknesses: its **enormous thirst for water and power**, its **thin public benefit**, and its **secrecy**. They demanded transparency, raised the environmental questions, mobilised the public, and pressed the planning politics. That fight is not yet won — and this guide will not pretend otherwise — but it shows both how hard such a fight is and how it can be waged.

The small commune fighting the Bissen data centre drew on tools available to communities across Luxembourg, aimed at the project's real vulnerabilities — its enormous thirst for water and power, its thin public benefit, and its secrecy. A major project needs an **environmental impact assessment (EIA)** with public consultation. Luxembourg is bound by the **Aarhus Convention** (information, participation, access to justice) and by **EU environmental law**, enforceable ultimately through the **European Commission**. The **planning process** operates at the commune and national level, where local politics genuinely bite. The **courts** are open; protest, petition, and litigation are lawful. And the project's **water and energy exposure** — in a small country with finite supplies — is a powerful, concrete argument, as is the demand for **transparency** where a project hides its benefit. But these tools have real limits, and this guide places the largest first: **this fight is not yet won**. The government courts these investments, the company is powerful, and a small commune faces long odds. So aim for what these levers can realistically deliver — a project delayed, shrunk, reshaped, or stopped; its water and energy use exposed and capped; its secrecy broken — and understand that even a partial win, in a fight like this, is a real one.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and public consent, and a chain breaks at its weakest link. A Luxembourg fight turns on the project's **water and energy exposure**; on the **transparency demand** that breaks its secrecy; on the **EIA and EU environmental law**; on the **planning process** and local politics; and on the **public** that a thin-benefit, resource-hungry project can be shown to shortchange. Every one of those is a link you can grab — and the water-and-energy exposure, in a small country, is the sharpest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months on this, work out your real situation:

- **If it's a thirsty, power-hungry project, its water and energy use are your sharpest lever** — in a small country with finite supplies, a tenth of the water and a country's worth of power for few jobs is a damning case.
- **If it's shrouded in secrecy, transparency is a weapon** — the Aarhus Convention gives you a right to the information, and secrecy itself is a political liability.
- **If there's an EIA or an EU-law angle, those genuinely bite** — this is a functioning EU democracy.
- **If the government courts the investment, expect long odds** — aim to delay, shrink, reshape, or stop, and count a partial win as real, because this fight is not yet won.

Read the whole guide once before you move. Two habits run through it: **turn the project's own vulnerabilities — water, power, thin benefit, secrecy — against it**, and **use the EU-democracy toolkit of the EIA, Aarhus, EU law, the planning process, and the courts**. That's how Bissen's opponents are fighting, and how such fights are won elsewhere.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A major project needs an **EIA** with public consultation and permits from the commune and the national authorities, where the **planning process** and local politics bite. **Aarhus** guarantees your rights to information, participation, and access to justice. **EU environmental law** binds Luxembourg and is ultimately enforceable through the **European Commission**. The **courts** review decisions. And the government, which courts these investments, is nonetheless answerable to a public that a resource-hungry, thin-benefit project can be shown to shortchange. Know which of these you can reach — the water-and-energy exposure and the planning process are the sharpest.

How a Project Moves — and Where You Jump In

The EIA and consultation. The project prepares its EIA; there's consultation. *Your opening — and it arms every later step:* use your **Aarhus** rights to get the information (especially the water and energy figures) and put your objections on the record.

The transparency demand. *Your opening — a distinctive one:* demand the withheld information — the water use, the power draw, the tax and jobs — because secrecy is both unlawful to maintain and a political liability.

The planning process. *Your opening:* the commune and national planning politics, where a resource-hungry, thin-benefit project can be delayed, shrunk, or refused.

The courts and the Commission. *Your opening:* a flawed EIA or an EU-law breach, challengeable in the courts and before the European Commission.

Follow the Money and the Permissions

Dig up three things. **What it consumes** — the water and the power, in a small country with finite supplies, because that is your sharpest, most concrete argument. **What it gives back** — the jobs, the tax, the benefit, which are often thin, so the trade looks bad. **What it hides** — the secrecy, which transparency demands

and Aarhus rights can break.

Who's Supposed to Be Watching

Each is an ally or an arena. The **commune and national authorities** run the planning and the EIA. **Aarhus** guarantees your rights. **EU environmental law** and the **European Commission** protect the wider framework. The **courts** review decisions. And Luxembourg's **environmental organisations, local residents and councillors, and a free press** are the forces that reach furthest — as Bissen's opponents are showing.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises, and the landmark fight is not yet won. What most moves them: whether the water-and-energy case is undeniable, whether the secrecy can be broken, and how hard the government courts the investment.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Expose the water + energy use	30–55%	weeks–months	low	A damning, concrete case
Transparency demands (Aarhus)	25–50%	weeks–months	low	Secrecy broken; the trade exposed
Objections in the EIA	15–35%	during EIA	low	Conditions or a redo
Planning process + local politics	25–50%	months–yr	low	Delayed, shrunk, or refused
Court challenge (flawed EIA / EU law)	25–50%	months–2 yr	mod	Assessment or permit quashed
Public mobilisation	25–50%	months–yr	low	Political liability; a rethink
Everything together (water/energy, transparency, law, public)	35–60%	months–2 yr	mod	Delayed, shrunk, reshaped, stopped
Against a government-courtied investor	20–45%	months–2 yr	mod	Partial: capped, delayed, exposed

The levers that move the needle most are **exposing the water and energy use** and **breaking the secrecy through transparency**, backed by the **planning process, EU environmental law, and public mobilisation**. There's no won-landmark ceiling to cite yet — the honest floor is a government that courts the investment and a powerful foreign company. So aim for a project delayed, shrunk, reshaped, or stopped, its water and energy use exposed and capped, its secrecy broken — and count a partial win as real.

On cost: exposing the water and energy use, demanding transparency, objecting, and mobilising are cheap; litigation costs more but is a real EU-democracy tool. The great strength is that the project's own vulnerabilities — its thirst for water and power, its thin benefit, its secrecy — are concrete and damning in a small country; the great requirement is to turn them against it relentlessly.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this water figure, this power draw, this hidden benefit — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the (often foreign) company, and its backers.

2. What does it consume — water and power? Establish, as precisely as you can, its **water use** (in a small country with finite supplies) and its **electricity draw** (against the whole country's or the region's capacity). **The water and energy exposure is your sharpest lever** — Bissen's alleged tenth of the water and a country's worth of power made the case.

3. What does it give back — and what does it hide? The jobs, the tax, the benefit (often thin), and the **secrecy** around all of it — because a bad trade, hidden, is a damning story.

4. What stage is it at, and what's the next deadline? Is the EIA or consultation open (use Aarhus now)? Is a planning decision pending? Has a permit issued (opening the courts)? These openings are time-bound.

5. Who's your coalition — residents, councillors, organisations? The affected commune, local residents and councillors, environmental organisations, and the press. Bissen's opponents built exactly this.

What this looks like in real life. A foreign tech giant plans a data centre that would drink a tenth of the country's water and a country's worth of power, for few jobs and little tax, its details hidden. The five questions yield: the foreign company; the water and power it consumes (your lever); the thin benefit and the secrecy; the EIA or planning decision in play; and a coalition of residents, councillors, and organisations. That's the Bissen pattern — expose the water and energy, break the secrecy, and press the law, the planning, and the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — above all of the water and energy use. Build it in three layers.

Layer one: the water and energy figures (via Aarhus). The heart of it: establish, as precisely as you can, the project's **water consumption** and **power draw** — using your **Aarhus** information rights to prise out what's hidden, and comparing them to the country's finite supplies. These concrete figures are the sharpest, most damning evidence.

Layer two: the thin benefit and the paper trail. Document the **jobs, tax, and benefit** the project actually gives back (often thin), and get the EIA, the planning application, and the permits — reading the EIA for flaws and for what it understates about water and power.

Layer three: the trade and the secrecy. Lay the consumption against the benefit, so the bad trade is undeniable, and document the **secrecy** — what was withheld and should not have been. Walking into the consultation, the planning process, the courts, the Commission, or the public with the water and energy figures, the thin benefit, and the broken secrecy is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The water and energy figures** — via Aarhus, compared to the country's finite supplies.
- **The benefit** — jobs, tax, and public value, often thin.

- **The EIA, planning application, and permits** — from the commune and national authorities.
- **The secrecy** — what was withheld and should not have been.
- **The trade** — consumption laid against benefit, made undeniable.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a coalition of residents, councillors, and organisations gives you the planning and public power such fights turn on. Build in four moves.

Root it in the commune. Bissen's fight began in a small commune. Start with the affected residents, and bring in the **local councillors** whose planning votes matter.

Bring in the experts and lawyers. A water-and-energy and EU-law fight needs credible technical and legal expertise — on the consumption figures, the finite supplies, the EIA flaws, and the Aarhus and EU-law angles. Bring it in early.

Turn the project's vulnerabilities into a public case. The distinctive lever: make the **water, the power, the thin benefit, and the secrecy** a public story — a foreign giant drinking a tenth of the nation's water and a country's worth of power, for almost nothing, in secret. That case mobilises the public and the planning politics.

Build to last. These fights run for months or years against a government-courted investor. Build clear roles, a secure archive, a way to decide together, and the endurance for a long fight — learning from the communities that beat data centres elsewhere.

STEP 4: THE WATER-AND-ENERGY CASE, TRANSPARENCY & THE EU TOOLKIT

Luxembourg's sharpest levers are the project's own vulnerabilities and the EU-democracy toolkit.

The Water-and-Energy Case — the Sharpest Lever

Your distinctive, concrete lever: **the project's enormous thirst for water and power** in a small country with finite supplies. Establish the figures — a tenth of the water, a country's worth of power — and lay them against the thin benefit, so the trade looks indefensible. This is the heart of the Bissen case and the strongest ground.

Transparency and Aarhus

Break the **secrecy**: use your **Aarhus** rights to information to prise out the water use, the power draw, the tax, and the jobs, and make the secrecy itself a liability. A project that hides a bad trade is doubly vulnerable — to the law and to the public.

The Planning Process, EU Law, and the Courts

Press the **planning process** and local politics, where a resource-hungry, thin-benefit project can be delayed, shrunk, or refused. Attack a flawed **EIA**, invoke **EU environmental law** (enforceable through the **European Commission**), and use the **courts**. These are the real tools of an EU democracy.

The Honest Limits

Straight talk: these levers are real and the vulnerabilities concrete, but the government courts the investment, the company is powerful, and this fight is not yet won. So use the strong tools — the water-and-energy case, transparency, the planning process, EU law, and the public — and count a project delayed, shrunk, reshaped, or stopped, its consumption exposed and capped, and its secrecy broken as wins, understanding a partial win is real.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Consumption becomes a damning trade. Not "we oppose the data centre" but *"this would drink a tenth of our water and a country's worth of power — for a handful of jobs and almost no tax."*

Secrecy becomes a liability. *"Why is a project this thirsty being decided in secret? We have a right to the figures."*

A flawed EIA becomes a court case. *"The assessment understated the water and power — the permit is unlawful."*

Thin benefit becomes a public argument. *"We give up our water and power; what exactly do we get back?"*

Match it to the venue: the consumption and the trade to the planning process and the public; the secrecy to the Aarhus demand; the EIA flaw to the courts and the Commission; the thin benefit to the press.

STEP 5: MEDIA STRATEGY

In Luxembourg, the public and the press are a real lever — a foreign giant drinking a tenth of the nation's water for almost nothing, in secret, is a damning story that moves a small country. A free press makes the media front central.

Lead with the water, the power, and the secrecy, not procedure. Not "the EIA was deficient" but "a foreign tech giant that would drink a tenth of our water and a country's worth of power, for a handful of jobs, decided in secret." Use your strongest material: the consumption figures, the thin benefit, and the broken secrecy.

Work several audiences at once. Luxembourg press and public build the pressure and the planning politics; EU-level attention reaches the European Commission where EU law is engaged. Make it easy: clear figures, accurate summaries, strong comparisons (a tenth of the water, a country's worth of power).

Two hard rules. Accuracy above all — one exaggerated figure can discredit the whole case, so be precise about the water and energy. And keep it concrete — the numbers are the story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Aarhus information request (to the authority).

Subject: Environmental information request — [project].

"Under the Aarhus Convention, we, [group/residents], request the water-use and energy figures, the EIA, the planning application, and the tax and jobs details for [project] at [location]. [Contact.]"

8B — Objection in the EIA / consultation.

Subject: Objection — [project].

"We, [group], object to [project]: [it would consume a tenth of our water and a country's worth of power for few jobs and little tax; the EIA understates this]. We ask that it be refused or reassessed. [Attach evidence.]"

8C — Transparency demand.

Subject: Break the secrecy — [project].

"We, [group], demand the withheld figures for [project] — its water use, power draw, tax, and jobs — to which we have a right under Aarhus. A project this thirsty must not be decided in secret. [Contact.]"

8D — To the commune / councillors (planning).

Subject: [Project] and our water and power — the planning decision.

"We, residents of [commune], ask the council to weigh [project]'s enormous water and power use against its thin benefit, and to delay, shrink, or refuse it. [Attach evidence.]"

8E — Court challenge / European Commission.

Subject: Flawed EIA / EU-law breach — [project].

"We submit that [project]'s EIA is flawed / it breaches EU environmental law: [specifics, on water and power]. We ask [the court / the European Commission] to act. [Attach evidence.]"

8F — To the company.

Subject: Water, power, and reputational risk — [project].

"We are the community affected by [project] at [location]. Its enormous water and power use, thin benefit, and secrecy face sustained opposition and legal challenge, and carry real reputational risk. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: A foreign giant would drink a tenth of our water for [project].

"[Project] would consume a tenth of the country's water and a country's worth of power, for few jobs and little tax, decided in secret. We can provide the figures, the trade, and interviews. [Contact.]"

8H — Rallying the public.

Subject: Our water, our power — let's ask what we get back.

"[Project] would take a tenth of our water and a country's worth of power, for almost nothing, in secret. Communities elsewhere have delayed, shrunk, and stopped data centres by exposing exactly this. Let's do the same. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish the water and energy figures — via Aarhus (8A) — your sharpest lever.**
2. **Break the secrecy with a transparency demand (8C).**
3. **Lay the consumption against the thin benefit — the damning trade.**
4. **Object in the EIA (8B), and press the commune's planning decision (8D).**
5. **Challenge a flawed EIA or EU-law breach (8E).**
6. **Make it a public story — the water, the power, the secrecy (8G/8H).**

Even lean, those six turn the project's own vulnerabilities against it — the Bissen template.

WHEN THE SYSTEM IS TILTED

Luxembourg's tools are strong, but the government courts these investments, and you must plan for it.

When the government wants the investment. Don't fold: the water-and-energy exposure and the secrecy are concrete and damning, and the planning process and the public can still delay, shrink, or refuse. Aim for a partial win if not a full stop.

When the fight isn't yet won. This is the honest Bissen truth. Value delay, shrinkage, reshaping, exposure, and caps as real wins, and keep pressing — these fights are long.

When the figures are hidden. Use Aarhus to prise them out, and make the secrecy itself a liability — a thirsty project decided in the dark is a political gift to its opponents.

When you look for precedent. Communities elsewhere have beaten or curbed data centres by exposing exactly these vulnerabilities. Learn from them, and use the same playbook.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Luxembourg is a functioning EU democracy, but the courting of powerful investors and the secrecy around such deals create real risks of capture, so this matters.

How to spot it. Deals struck in secret; figures withheld; benefits to the connected while the public's water and power are given away; assessments that understate the consumption.

Who's supposed to guard against it. Luxembourg's audit and oversight bodies examine public money and conduct. The **courts** can quash a tainted permit. The **European Commission** can act on EU-law breaches. And Luxembourg's **free press and organisations** can expose a bad, hidden trade.

How to fight it safely. The issue here is usually secrecy and a bad trade, not graft — so document precisely and factually the water, the power, the thin benefit, and what was withheld, and press for transparency. Keep every figure exact, because precision is your strongest weapon. Route serious evidence to the oversight bodies, the courts, the Commission, and trusted journalists rather than making accusations you can't back.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The water-and-energy figures are your case; the thin benefit and the secrecy aim it; a coalition of residents, councillors, and organisations is the muscle; the EIA, the planning process, EU law, and the courts press it; the public story raises the cost. Together they multiply. One at a time, they stall — and this fight is long.

Early on (weeks 1–8): establish the water and energy figures via Aarhus; break the secrecy; lay the trade bare; object in the EIA; build a coalition of residents, councillors, and organisations.

In the thick of it (months–year+): press the planning decision; challenge a flawed EIA or EU-law breach; make it a public story.

The long haul (year+): keep pressing for delay, shrinkage, reshaping, caps, or a stop; keep the coalition alive; hold the line for a project delayed, shrunk, reshaped, or stopped, its consumption exposed and capped, and its secrecy broken.

FINAL ASSESSMENT

Stopping — or at least curbing — a destructive heavy development in Luxembourg can be done, and the tools are those of a functioning EU democracy, though the landmark fight is not yet won. Hold both truths. The distinctive power here is real and modern: a community, even a small one against a powerful foreign company its own government courts, can turn the project's own vulnerabilities — its enormous thirst for water and power, its thin public benefit, its secrecy — against it, using environmental law, transparency demands, public mobilisation, and local planning politics to delay, shrink, reshape, or stop it. And the constraints are real: a government that courts these investments, a powerful investor, and a fight that is not yet won.

Here's the discipline that wins what can be won. Establish the project's water and energy use as precisely as you can — a tenth of the nation's water, a country's worth of power — using your Aarhus rights to prise out the figures, and lay them against the thin benefit so the trade looks indefensible. Break the secrecy, and make it a liability: a thirsty project decided in the dark is a gift to its opponents. Object in the EIA, press the commune's planning decision, and challenge a flawed assessment or an EU-law breach in the courts and before the European Commission. Make the water, the power, the thin benefit, and the secrecy a public story that moves a small country. Learn from the communities that have curbed data centres elsewhere, and settle in for a long fight. Count a project delayed, shrunk, reshaped, or stopped, its consumption exposed and capped, and its secrecy broken as real wins. That is how such fights are waged — the project's own vulnerabilities, turned against it, through the EU-democracy toolkit. So can you.